



Board of Zoning Appeals, April 30th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=Lcwv6ukPqKY
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Target Category	delaware_county

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Delaware-Muncie Metropolitan Board of Zoning Appeals: Meeting Summary Report

Meeting Date: April 2026 (Monthly Meeting)

Board Name: Delaware-Muncie Metropolitan Board of Zoning Appeals

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The presiding officer called the April monthly meeting of the Delaware Muncie Metropolitan Board of Zoning Appeals to order at [00:00:04](#).
- **Attendance:**
 - **Present:** Matt Billington, Delaney Fritch, John Hamilton, Stephen Hines, Richard Ivy, Christy Knapp, and Leslie Matthewson. (All 7 members present).
 - **Absent:** None.
 - **Presiding Officer:** Not explicitly named by title in the opening transcript, but leading board proceedings.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Miss Heidi 00:00:18. New board member Stephen Hines was sworn in with the official oath of office for a term running through the end of 2026 00:00:50.
- **Approval of Minutes:** The February 2026 regular monthly meeting minutes were presented and approved by roll call vote (6 Yes, 0 No, 1 Abstain by S. Hines) 00:02:46.
- **Administrative Announcements:**
 - Case BZA 11-26 (Murphy Oil USA, 1421 East 29th Street) was continued to the next meeting 00:03:50.
 - Case BZA 16-26 (DCRT LLC, 2517 West 8th Street) was changed to a special use, to be heard first by the Metropolitan Plan Commission on May 7, 2026, and then by the BZA on May 28, 2026 00:04:20.

4. Substantive Business & Board Action

- 00:07:34 **BZA 04-26: Sign Variance for McDonald's / Pegasus Future 2 LLC**
 - **Sponsor / Presenter:** Dan Olson, Upstream Design Group.
 - **Deliberation Summary:** Request for a variance to allow a pole sign for a new restaurant on a corridor road at the southeast corner of Macedonia Avenue and 29th Street. The applicant lowered the requested height to 21 feet to accommodate site limitations, visibility challenges, lot shape, easements, and an existing billboard/monument sign. Muncie Mayor Dan Ridenour spoke in favor. Staff noted building commissioner Richard Rawlings had no opposition.
 - **Item-Specific Public Input:** Mayor Dan Ridenour spoke in favor, emphasizing economic development and project collaboration.
 - **Action & Vote Disposition:** Approved by roll call vote (5 Yes, 2 No) 00:15:24.
- 00:16:28 **BZA 10-26: Development Variances for Small Sliders**
 - **Sponsor / Presenter:** Ellen Broyles (Applicant) and Bill Terry (Civil Engineer, W Engineers).
 - **Deliberation Summary:** Request for variances to allow reduced foundation plantings on the east side of the building (due to the drive-thru) and a reduced front green belt (accommodating a new 6-foot sidewalk requested by city planning) for a new restaurant at 211 West McGalliard Road. The previously requested facade material variance was withdrawn as the design now complies with natural material ordinances.
 - **Item-Specific Public Input:** Muncie Mayor Dan Ridenour spoke in favor, praising the investment and partnership with city engineer Adam Leach.
 - **Action & Vote Disposition:** Approved with conditions regarding staff site plan coordination and safety/departments approvals by roll call vote (7 Yes, 0 No)

00:24:42.

- **00:25:54 BZA 12-26: Height Variance for Accessory Building by Chris Hyatt**

- **Sponsor / Presenter:** Chris Hyatt (Applicant).
- **Deliberation Summary:** Request for a height variance for an auxiliary multi-purpose building/garage to house an RV at 2812 West Birchwood Drive, reaching 23 feet at the peak due to a 16-foot sidewall and 4/12 roof pitch. The applicant noted extensive landscaping investments (arborvitaes) and unanimous neighborhood petition support.
- **Item-Specific Public Input:**
- Stephen Brand spoke in favor, praising the applicant's proactiveness and design considerations 00:29:54.
- Mark Moreau (next-door neighbor) spoke in favor, confirming neighborhood support and community involvement 00:30:36.
- Mayor Dan Ridenour spoke in favor 00:34:53.
- **Action & Vote Disposition:** Approved by roll call vote (5 Yes, 2 No) 00:37:26.

- **00:38:15 BZA 13-26: Accessory Structure Variances for Troy & Jerry Tucker**

- **Sponsor / Presenter:** Troy A. and Jerry B. Tucker.
- **Deliberation Summary:** Request for variances to allow increased height and total square footage of accessory structures to exceed that of the dwelling for a new three-bay garage/barn at 18709 North Littlejohn Lane (Union Township). The applicant adjusted the structure location by 6 feet to comply with R1 zoning and plat rules.
- **Item-Specific Public Input:** Stephen Brand spoke in favor 00:43:31.
- **Action & Vote Disposition:** Approved with a condition restricting the barn to personal storage only by roll call vote (7 Yes, 0 No) 00:45:06.

- **00:45:45 BZA 14-26: Sign Redevelopment Variance for Lotus Muncie LLC**

- **Sponsor / Presenter:** Ashish Patel.
- **Deliberation Summary:** Request for a variance to redevelop and reduce an existing non-conforming pole sign height from 50 feet down to 18 feet for the Bliss Point Inn (formerly Muncie Inn) at 414 North Madison Street.
- **Item-Specific Public Input:**
- Mayor Dan Ridenour spoke in favor, highlighting the revitalization of a formerly nuisance property 00:49:41.
- Stephen Brand spoke in favor 00:51:04.
- **Action & Vote Disposition:** Approved by roll call vote (5 Yes, 2 No) 00:52:14.

- **00:52:54 BZA 15-26: Farm Animal and Coop Setback Variances by Azucena Carolina Lucero Martinez**

- **Sponsor / Presenter:** Julio Munoz (Interpreter/Representative).
- **Deliberation Summary:** Request for variances to allow farm animals on less than 5 acres and a reduced chicken coop setback at 9209 South Center Road. Discussion revealed a discrepancy regarding animal counts (application stated 4 total; applicant

stated ~35 chickens including roosters). The board clarified that it could only vote on the requested maximum of 4 animals.

- **Item-Specific Public Input:** None during formal hearing (withdrawal requested).
- **Action & Vote Disposition:** Withdrawn by the applicant for re-filing [01:00:54](#).
- [01:03:55](#) **BZA 17-26: Attached Dwelling Unit Variance by Michael and Dawn Guest**
 - **Sponsor / Presenter:** Michael and Dawn Guest.
 - **Deliberation Summary:** Request for a variance to allow an attached dwelling unit addition (15x30 feet) for a family member in a single-family residential zone at 12110 South County Road 700 East (Perry Township). The applicants confirmed intentions to remove an older secondary home on the property by the end of summer 2026 in coordination with the county building commissioner.
 - **Item-Specific Public Input:** Stephen Brand spoke in favor [01:08:06](#).
 - **Action & Vote Disposition:** Approved with conditions (no rental use, separation walls removed after use, and compliance with residential building codes) by roll call vote (7 Yes, 0 No) [01:09:31](#).
- [01:10:12](#) **BZA 18-26: Setback Variance for Church Addition by Mount Calvary COGIC**
 - **Sponsor / Presenter:** Mason Olson (Tabernacle Architects) and Pastor Earl Venable.
 - **Deliberation Summary:** Request for a variance to allow a reduced rear/side setback for a 5,000-square-foot addition (Charles Everett Cody Family Life Center) housing a gymnasium, food/clothing pantry, and community health programs at 1525 East Butler Street.
 - **Item-Specific Public Input:**
 - Mayor Dan Ridenour spoke in favor [01:15:28](#).
 - Stephen Brand spoke in favor [01:16:11](#).
 - **Action & Vote Disposition:** Approved as presented by roll call vote (7 Yes, 0 No) [01:17:23](#).
- [01:18:01](#) **BZA 19-26: Temporary Dwelling Variances by Shelby and Keegan Newsome**
 - **Sponsor / Presenter:** Shelby Newsome.
 - **Deliberation Summary:** Request for variances to allow a mobile home with reduced square footage and no permanent foundation as a temporary dwelling in a farm zone on the West 9000 block of West County Road 750 North (Gaston) while building a permanent home on their 7-acre parcel.
 - **Item-Specific Public Input:**
 - Charlie Richmond (neighbor) spoke in favor, expressing enthusiastic neighborhood support [01:22:33](#).
 - Stephen Brand spoke in favor [01:23:26](#).
 - **Action & Vote Disposition:** Approved with conditions (restricted to applicant only; temporary structure removed upon completion of permanent home) by roll call vote (7 Yes, 0 No) [01:24:54](#).
- [01:25:36](#) **BZA 20-26: Accessory Structure Variance by Todd and Eva Marsh**
 - **Sponsor / Presenter:** Todd and Eva Marsh.

- **Deliberation Summary:** Request for a variance to allow accessory structures (30x50 steel building with a 12-foot lean-to) to have a greater total square footage than the dwelling on 11 acres at 17121 North Willman Road (Eaton) for personal vehicle storage and maintenance.
 - **Item-Specific Public Input:** Stephen Brand spoke in favor [01:27:48](#).
 - **Action & Vote Disposition:** Approved with a condition restricting the barn to personal storage only by roll call vote (7 Yes, 0 No) [01:28:48](#).
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5. Open Public Comment / Citizen Forum

(Note: General public comments occurred primarily during specific agenda item hearings rather than a separate dedicated forum section. See individual item sections above for speaker testimony from Mayor Dan Ridenour, Stephen Brand, Mark Moreau, and Charlie Richmond.)

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Director/Staff reported on permitting and inspection metrics.
 - Zoning planner Kayla Ferguson was congratulated on graduating with her master's degree [01:29:51](#).
 - Announced a public meeting for the Town of Eaton regarding a proposed roundabout project at State Route 3 and Eaton Wheeling Pike, scheduled for Wednesday, May 6, at Eaton Elementary [01:30:13](#).
 - **Adjournment:** The meeting was officially adjourned following a motion and second [01:30:53](#).
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